1. General
These general terms and conditions of purchasing (hereinafter "**General Terms**") shall apply to all products (hereinafter **"Products"**) purchased by Huhtamaki PPL Ltd. with Corporate Indentification Number: L21011MH1950FLC145537 and with its domicile in India or any of its affiliates (hereinafter **"Buyer"**) from its suppliers (hereinafter **"Supplier"**), and Supplier shall be deemed to accept these General Terms by supplying any Products, unless specifically agreed otherwise in writing between Supplier and Buyer. These General Terms override any additional or deviating terms or conditions included in any order confirmation of Supplier or otherwise referred to by Supplier or Buyer, unless specifically agreed otherwise in writing.

2. Production Location and Quality Control
Supplier shall submit to Buyer, at Supplier's expense, samples of the Products and of the material used in the preparation of the Products in accordance with such instructions as reasonably requested in writing from time to time by Buyer. Supplier shall permit Buyer and its representatives to enter and inspect and audit, during Supplier's normal working hours, the plant facilities, equipment and methods used by Supplier in the preparation, production, packaging, storage and handling of the Products, and shall take all reasonable steps necessary to implement any reasonable requirements of Buyer. Supplier accepts that the Products will be subject to final inspection and acceptance by Buyer after delivery to Buyer. Without prejudice to other provisions in this Article 2 Supplier shall at all times remain solely responsible for quality control with respect to the Products.

3. Forecasting, Capacity and Volumes
For planning purposes only, Buyer may forward regular non-binding forecasts of requirements to Supplier. No compensation whatsoever shall be payable to Supplier in the event the quantities actually purchased deviate from any estimated quantities.

4. Molds and Print Origination
Unless otherwise agreed, the molds, dies, patterns, blueprints, equipment and print origination and other tools and instruments (hereinafter **"Huhtamaki Tools"**) furnished or paid by Buyer and used for the manufacturing of the Products shall be in Buyer's ownership. Supplier shall never use Huhtamaki Tools for any supplies to third parties. Huhtamaki Tools shall be under Supplier's control and any damage or loss incurred to Huhtamaki Tools shall be duly compensated to Buyer by Supplier. Supplier shall insure Buyer's interst in Huhtamaki Tools against all risks of theft, loss or damage. Upon termination of the supply relationship, Supplier shall return Huhtamaki Tools without
delay to Buyer at Supplier's cost.

5. Title, Delivery and Risk of Loss
5.1 Supplier shall transfer the Products with good title, free from any liens or encumbrances.
5.2 Title to the Products shall pass to Buyer upon delivery of the Products at Buyer's disposal at the agreed location.
5.3 If a potential order does not specify trade terms as defined in Incoterms, the Products shall be delivered DDP Buyer's premises, and Supplier shall bear all risks of loss of or damage to the Products until the Products have been placed at Buyer's disposal at Buyer's premises. Trade terms shall be interpreted in accordance with Incoterms latest edition.
5.4 Delivery of the Products shall take place in clean, hygienic and physically sound conditions according to the terms agreed between Supplier and Buyer, in such quantities and at such times as Buyer shall have designated in any order or other communication to Supplier.The Products shall be packed and marked in accordance with Buyer's instructions and always be packed as to have the necessary protection to prevent damage to the Products during the transportation.
5.5 Timely delivery of the Products shall be of the essence of the supply relationship. All orders shall be shipped complete by the date requested. Supplier shall notify Buyer in writing immediately as it becomes aware that it will be unable to deliver the Products on the due date or within the agreed time. In order to swiftly notify Buyer of any delays in the delivery of the Products Supplier shall actively follow-up the progress of production and the delivery with the used transportation method. The acceptance of late deliveries shall not constitute a waiver by Buyer of its right to cancel an order or to refuse to accept further deliveries. Goods shipped in advance by Supplier may be returned to Supplier, at Supplier's expense, or may be held by Buyer with payment therefore deferred until after the scheduled date of delivery.

6. Warranties
6.1 Supplier warrants that the Products delivered to Buyer hereunder shall at the time of delivery be in accordance with agreed specifications and fit for the purpose for which Products of that kind are commonly used. Supplier, furthermore, warrants that the Products shall comply with any applicable legal and regulatory requirements.
6.2 The Products shall be free from any defects in design, materials and workmanship. Supplier warrants that the Products shall not infringe or violate against any patent, design, trademark, trade name or any other intellectual property right of a third party.
6.3 Supplier shall ensure that the Products have not been exposed to any microbiological, foreign body or chemical hazards, and Supplier shall provide Buyer with all information of the characteristics of the Products on request. Documentation evidencing the compliance with all necessary information of quality, environmental, health and safety effects of the Products and the management systems of the said effects implemented by Supplier must be made available by Supplier on request.
6.4 These warranties shall be in addition to all other warranties, express, implied or statutory.
6.5 Supplier shall ensure that Code of Conduct for Huhtamaki Suppliers is applied. The valid Code of Conduct for Huhtamaki Suppliers is available on Buyer's website www.huhtamaki.com.

7. Performance Measuring, Remedies and Liability
7.1 At the time of shipment of the Products to Buyer, Supplier shall send to Buyer's quality control department at Buyer's receiving facility or such other location as Buyer may designate the certificate of analysis of each shipment of Products at a separate request of Buyer. Supplier shall retain a sample from each delivery of the Products for not less than two years. Furthermore production or batch records identifying lots of raw materials used in the manufacture of a batch of the Products shall be retained by Supplier for not less than two years.
7.2 Buyer shall notify Supplier without unnecessary delay, if Buyer determines that any Products do not meet their specification, or otherwise do not comply with the agreed terms and conditions. Such defective Products shall constitute a breach of these General Terms and shall upon request from Buyer be immediately replaced by Supplier at Supplier's cost and expense without prejudice to any other remedy of Buyer under these General Terms or by law or in equity. All storage and other costs related to the defective Products shall be for the account of Supplier. Risk for the defective Products shall at all times remain with Supplier.
7.3 Supplier shall defend, indemnify and hold Buyer harmless from and against all liability, loss, costs and expenses (including attorneys' fees and legal expenses), including but not limited to any loss of profits, loss of business, depletion of goodwill (whether direct or indirect) and indirect, consequential, special, punitive and exemplary damages, that have been awarded against or incurred or paid by Buyer as a result of or in connection with (i) a breach or breaches by Supplier of any of the warranties or other obligations set out in these General Terms or any other contract terms governing the supply relationship, (ii) a breach or breaches by Supplier of any obligation imposed by applicable law, (iii) negligence or wilful misconduct of Supplier, (iv) product liability, (v) environmental liability, (vi) intellectual property infringement or (vii) the supply relationship.

8. Insurance
Supplier shall obtain and keep commercial general liability insurance (including contractual liability) in effect during the supply relationship. Supplier shall obtain the insurance at its own expense from carriers acceptable to Buyer. If requested by Buyer, Supplier shall name Buyer, including its affiliates and their respective officers, directors, employees, and agents as additional insured under its general liability insurance. Compliance with this insurance requirement shall in no way limit Supplier's obligations or liabilities under these General Terms. Supplier shall provide Buyer with certificates of insurance evidencing the above-required coverage at Buyer's request.

9. Price, Price Adjustment and Payment
9.1 The price for the Products to be paid by Buyer shall be inclusive of Goods and Service Tax (which shall be separately specified to Buyer) and other similar taxes, duties or imposts levied by any governmental agency (including, but not limited to, those at state or municipal levels) with respect to the Products supplied hereunder. The price for the Products shall be DDP Buyer's premises, including all transportation costs, unless otherwise specifically agreed in writing. For the duration of the supply relationship, no increase in the price may be made (whether on account of foreign exchange fluctuations, currency regulations, changes in duties or taxes, increase in the cost of raw materials, labor, energy, transport or otherwise), without the prior consent of Buyer in writing. Time for payment shall not be of the essence.
9.2 If, during the supply relationship, Supplier's net prices to buyers situated similarly to Buyer for materials similar to those furnished to Buyer are reduced below those agreed by Supplier and Buyer, Supplier agrees to give Buyer the benefit of such reduction.
9.3 Payment shall never imply a waiver by Buyer of any right it may have under these General Terms or by law or in equity.

10. Force Majeure
Neither party shall be liable for non-performance of its obligations if such non-performance is caused by fire, natural disasters, flood, riot, revolt, war, acts of governmental authority or contingencies beyond the reasonable control of the party affected but excluding strikes or industrial action. A party cannot rely on force majeure for its non-performance when the negative effects of an event affecting the performance of the party can reasonably be resolved through the activation of contingency plans. The party affected by any such events shall immediately notify the other party and indicate the expected duration of such interruption. The parties will use their respective best endeavours to mitigate the effect thereof in the best possible way. In the event the force majeure continues beyond a period of fourteen (14) days, the other party has the right to terminate the supplies concerned by written notice, without having to pay any form of compensation.

11. Confidentiality
11.1 The parties hereto undertake towards each other during the term of the supply relationship and three (3) years thereafter to keep in the strictest confidence all confidential information and trade secrets received from the other party in connection with the supply relationship, and to use the said information for the purposes of the supply relationship only. However, the obligation above shall not apply to confidential information
(i) which the receiving party may prove having been in the possession prior to the first receipt from the other party;
(ii) which at the date hereof or thereafter becomes a matter of public knowledge without a breach of this confidentiality obligation; or
(iii) which the receiving party may prove having been obtained from a third party under circumstances permitting its disclosure to others.
11.2 The parties shall not, without prior written consent of the other party, disclose to any third parties that there exists any cooperation between the parties.
11.3 The shares of Huhtamaki PPL Ltd. are quoted on BSE Limited and The National Stock Exchange of India Ltd., . Due to the cooperation between Supplier and Buyer, Supplier acknowledges the possiblity of having become or becoming an insider under the applicable securities laws and regulations and understands that the relevant securities laws and regulations shall thus become applicable and may contain additional and/or stricter restrictions as to the confidentiality and use of information received from Buyer compared to what is included in these General Terms.
11.4 Notwithstanding Article 11.1 above, the obligation of nondisclosure and nonuse of Buyer's trade secrets and manufacturing know-how shall not expire.

12. Non-performance
If Supplier fails to perform any of its obligations when due, Buyer may, at its option and in addition to any other remedies available to it and without any compensation to Supplier, decline to make further payments, cancel any orders and/or cancel the supply relationship. The foregoing rights shall be cumulative, alternative and in addition to any right or remedy Buyer may have under these General Terms or by law or in equity.

13. Performance by Affiliates
At Buyer's option, any obligation of Buyer may be performed by Huhtamäki Oyj or any of its affiliates.

14. Assignments and Third Party Rights
14.1 Supplier shall not transfer nor assign its obligations to any third party (excluding the Supplier's affiliates) without Buyer's prior written consent.
14.2 A person who is not a party to a contract incorporating these General Terms shall not have any right (whether under any statute or otherwise) to enforce any provision of that contract.

15. Non-waiver
Failure to exercise any rights shall not constitute a waiver thereof.

16. Severability of Provisions
If any provision of these General Terms should be held invalid or unenforceable, the validity and enforceability of the remaining provisions shall not be affected.

17. Applicable Law and Dispute Resolution
17.1 Unless specifically agreed otherwise in writing, these General Terms and the supply relationship shall be governed by and construed in accordance with laws of the place of incorporation of Buyer. The United Nations Convention on Contracts for the International Sale of Goods (1980) shall not apply to these General Terms or the supply relationship.
17.2 Unless specifically agreed otherwise in writing, any dispute, controversy or claim arising out of or relating to these General Terms, the supply relationship or the breach, termination or validity thereof (whether contractual or non-contractual in nature) shall be finally settled by arbitration in accordance with the Rules of Arbitration of the International Chamber of Commerce by one or more arbitrators appointed in accordance with the said Rules. The arbitration shall take place in the domicile of Buyer and shall be conducted in the English language. Regardless of the aforesaid, Buyer shall alternatively be entitled to assert its own claims against Supplier at the courts at Buyer's registered seat of business.

18. Equal Employment Opportunity <u>in the U.S.</u>
EEO/AA for United States. Huhtamaki, Inc. is an affirmative action / equal opportunity employer and complies with: 41 CFR 60-741.5 **(This contractor and subcontractor shall abide by the requirements of 41 CFR 60-741.5(a). This regulation prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by covered prime contractors and subcontractors to employ and advance in employment qualified individuals with disabilities);** 41 CFR 60-300.5(a) **(This contractor and subcontractor shall abide by the requirements of 41 CFR 60-300.5(a). This regulation prohibits discrimination against qualified protected veterans, and requires affirmative action by covered prime contractors and subcontractors to employ and advance in employment qualified protected veterans);** and 29 CFR Part 471, Appendix A to Subpart A (employee notice clause).

19. Trade Marks and Trade Names
If the Products are particular to Buyer's design or if the Products bear Buyer's trademark or other identifying mark, they shall not bear any trademark or other designation of Supplier and Products bearing Buyer's trademarks or identifying marks shall not be sold or otherwise disposed of to any party other than Buyer, without the written consent of Buyer. Unless authorized by Buyer in writing, the names (trade or otherwise) of Buyer shall not be used in Supplier's advertising.

20. Amendments
These General Terms shall be subject to further amendments or recission made by Buyer without notice to Supplier and a valid version is always available on Buyer's website www.huhtamaki.com.